

Case Name: *Ky v. Hernandez, et al.*

Case No.: 24CV444162

After full consideration of the evidence, the separate statements submitted by the parties, and the authorities submitted by each party, the court makes the following rulings:

According to the allegations of the complaint, on August 2, 2022, plaintiff Tech Ky (“Plaintiff”) was swimming in a designated lane for persons with disabilities at the facility at 762 Sunnyvale-Saratoga Ave. in Sunnyvale of defendant 24 Hour Fitness USA, LLC (“24 Hour”) when he was physically and verbally attacked by defendant Jesus Ramirez Hernandez (“Hernandez”). (See complaint, ¶ 8.)

On July 29, 2024, Plaintiff filed the complaint against defendants Hernandez and 24 Hour (collectively, “Defendants”), asserting causes of action for:

- 1) Assault (against Hernandez);
- 2) Battery (against Hernandez);
- 3) Intentional infliction of emotional distress (against Hernandez);
- 4) Negligence (against all defendants);
- 5) Negligent hiring, supervision and retention (against 24 Hour); and,
- 6) Premises liability (against 24 Hour).

Defendant 24 Hour moves for summary judgment, or, in the alternative, for summary adjudication of the third, eight and ninth affirmative defenses, asserting that the complaint is barred by the express liability release in the 24 Hour membership agreement and that it does not have a duty to protect its patrons from the criminal acts of third parties.

DEFENDANT 24 HOUR’S MOTION FOR SUMMARY JUDGMENT, OR, IN THE ALTERNATIVE, FOR SUMMARY ADJUDICATION

Defendant’s burden on summary judgment and summary adjudication

“A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action. . . . The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted; emphasis added.)

“The ‘tried and true’ way for defendants to meet their burden of proof on summary judgment motions is to present affirmative evidence (declarations, etc.) negating, as a matter of law, an essential element of plaintiff’s claim.” (Weil et al., Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2007) ¶ 10:241, p.10-91, *citing* *Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 334; emphasis original.) “The moving party’s declarations and evidence will be strictly construed in determining whether they negate (disprove) an essential element of plaintiff’s claim ‘in order to avoid unjustly depriving the plaintiff of a trial.’” (*Id.* at § 10:241.20, p.10-91, *citing* *Molko v. Holy Spirit Assn.* (1988) 46 Cal.3d 1092, 1107.)

“Another way for a defendant to obtain summary judgment is to ‘show’ that an essential element of plaintiff’s claim cannot be established. Defendant does so by presenting evidence that plaintiff ‘does not possess and cannot reasonably obtain, needed evidence’ (because plaintiff must be allowed a reasonable opportunity to oppose the motion.) Such evidence usually consists of admissions by plaintiff following extensive discovery to the effect that he or she has discovered nothing to support an essential element of the cause of action.” (*Id.* at ¶ 10:242, p.10-92, *citing* *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-855.)

Defendant 24 Hour meets its initial burden to demonstrate that the complaint lacks merit.

The fourth through sixth causes of action for negligence, negligent hiring, supervision and retention, and premises liability are all rooted in negligence. 24 Hour argues that it is

entitled to summary judgment on the ground that these causes of action are without merit either because they are barred by the express liability release in the 24 Hour membership agreement, or because it does not owe a duty to prevent the criminal conduct of third parties.

24 Hour meets its initial burden to demonstrate that it does not owe a duty to Plaintiff due to the release agreement between the parties

As stated above, the fourth through sixth causes of action are rooted in negligence. (See *Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815 (stating that “[l]iability for negligent supervision and/or retention of an employee is one of direct liability for negligence”); see also *Doe v. Lawndale Elementary School Dist.* (2021) 72 Cal.App.5th 113, 121 (stating that a cause of action for negligent hiring, retention and supervision is one for negligence); see also *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619 (stating that “[p]remises liability is a form of negligence”); see also *Miller v. Pacific Gas & Electric Co.* (2023) 97 Cal.App.5th 1161, 1165 (stating that “premises liability [is] a theory of negligence”); see also *McIntyre v. The Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 668 (stating that “premises liability... [is] a species of negligence”).) As the California Supreme Court has noted, “releases of liability concerning ordinary negligence related to gymnasiums and fitness clubs... have [been] upheld....” (*City of Santa Barbara v. Super. Ct. (Janeway)* (2007) 41 Cal.4th 747, 759; see also *Benedek v. PLC Santa Monica* (2002) 104 Cal.App.4th 1351, 1356-1359 (affirming judgment for health club, stating that “[a] written release may exculpate a tortfeasor from future negligence or misconduct... [e]xculpatory agreements in the recreational sports context do not implicate the public interest and therefore are not void as against public policy... [i]f a release of all liability is given, the release applies to any negligence of the defendant... [g]iven its unambiguous broad language, the release reached all personal injuries suffered by Benedek on Pritikin’s premises... [a] release of all premises liability in consideration for permission to enter recreational and social facilities for any purpose does not violate public policy”); see also *Sanchez v. Bally's Total Fitness Corp.* (1998) 68 Cal.App.4th 62, 67-69 (affirming summary

judgment in favor of health club on cause of action for negligence, stating that while the release in the membership agreement did not include the term negligence, “[t]he inclusion of the term ‘negligence’ is simply not required to validate an exculpatory clause... every possible specific act of negligence of the defendant [need not] be spelled out in the agreement or even discussed by the parties... plaintiff’s cause of action is barred by the terms of the agreement”); see also *YMCA of Metro. L.A. v. Super. Ct. (Clark)* (1997) 55 Cal.App.4th 22, 29 (reversing trial court’s denial of health club’s summary judgment, stating that the release was valid and “[b]ecause plaintiff waived her right to sue the YMCA for her personal injuries resulting from its alleged negligence in maintaining its premises, we conclude the motion for summary judgment should have been granted”).)

The membership form—signed by Plaintiff—states:

Using the 24 Hour Facilities involves the risk of injury to you or your guest, whether you or someone else causes it. Specific risks vary from one activity to another and the risks range from minor injuries to major injuries, such as catastrophic injuries including death. **In consideration of your participation in the activities offered by 24 Hour, you understand and voluntarily accept this risk and agree that 24 Hour, its officers, directors, employees, volunteers, agents and independent contractors will not be liable for any injury, including, without limitation, personal, bodily, or mental injury, economic loss or any damage to you, your spouse, guests, unborn child, or relatives resulting from the negligence of 24 Hour or anyone on 24 Hour’s behalf or anyone using the Facilities, whether related to exercise or not.** Further, you understand and acknowledge that 24 Hour does not manufacture fitness or other equipment at its Facilities, but

purchases and/or leases equipment. You understand and acknowledge that 24 Hour is providing recreational services and may not be held liable for defective products. By signing below, you acknowledge and agree that you have read the foregoing and know of the nature of the activities at 24 Hour and you agree to all the terms on the front and back pages of this agreement and acknowledge you have received a copy of it and the membership policies.

(Grappone decl. in support of Def.'s motion for summary judgment ("Grappone decl."), ¶ 4, exh. C (emphasis original); see also Tarter decl. in support of Def.'s motion for summary judgment ("Tarter decl."), ¶ 4, exh. E. ("Pl. depo"), pp.25:15-25, 26:1-25, 27:1-25, 28:1-14; see also Grappone decl., ¶¶ 1-3, 5-9.)

Plaintiff's objections numbers 1-7 are OVERRULED.

Here, to the extent that Plaintiff's injury may be the result of 24 Hour's negligence, it is covered by the release of liability. The release is clear, unambiguous and explicit in that it is very broad, encompassing "any injury... resulting from the negligence of 24 Hour...whether related to exercise or not." (See *Benedek, supra*, 104 Cal.App.4th at p.1356 (stating that "[a] release may negate the duty element of a negligence action... [c]ontract principles apply when interpreting a release, and 'normally the meaning of contract language, including a release, is a legal question'... [a] written release may exculpate a tortfeasor from future negligence or misconduct... [t]o be effective, such a release 'must be clear, unambiguous, and explicit in expressing the intent of the subscribing parties'... [t]he release need not achieve perfection".)) Defendant 24 Hour meets its initial burden in demonstrating that the causes of action for negligence against it are without merit due to the release agreement between the parties that states that Plaintiff released 24 Hour from any liability regarding 24 Hour's negligence.

24 Hour meets its initial burden to demonstrate that it does not owe a duty to Plaintiff to protect him from the assault by Hernandez because, as a matter of law, the

“[A]s a general matter, there is no duty to act to protect others from the conduct of third parties... [however, a] defendant may owe an affirmative duty to protect another from the conduct of third parties if he or she has a ‘special relationship’ with the other person.” (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 234-235.) With regards to business proprietors and their patrons, “a proprietor’s ‘general duty of maintenance, which is owed to tenants and patrons, ... include[s] the duty to take reasonable steps to secure common areas against foreseeable criminal acts of third parties that are likely to occur in the absence of such precautionary measures.’” (*Id.* at p.235.) Both “the existence of a legal duty... [and] foreseeability, when analyzed to determine the existence or scope of a duty, [are] question[s] of law to be decided by the court. (*Id.* at p.237.)

24 Hour presents Plaintiff’s deposition testimony in which he explains the subject incident:

Q. Okay. And at the time the incident occurred, what were you doing?

A. I was walking in the water.

Q. Walking in the water. Okay. Why don’t you describe to me in your own words how the incident occurred.

A. Okay. You know, obviously I had to change to walk in. And the requirement is, you know, people should shower before they go in the water, so I did that.

Q. Okay.

A. And then the gentleman came by while I was in the shower. So he went straight to the water. Then I walk -- I cannot get in through any -- I have to go to the-- use the steps--

Q . Okay.

A. -- because of my back. So I had to walk back the long way back, you know, all the way to the other end of the pool. So I use the stairs to get in the water. So I do that. I got in the water. I continued walking. And so I had no idea what was going on. It's common for people to share one lane. It's uncommon for people to swim in that lane. It's not for swimming.

Q. The lane you were is not for swimming?

A. Yes. There are sign there, signage that say for floaters use.

Q. For floaters?

A. Use, yes.

Q. Okay. Okay, continue.

A. So I -- so I had no idea what was going on. If I had known, I would have just left. So I just, you know, did my daily routine. Just walk. At some point I receive a kick, but then again like I said, I didn't put two and two together. So I continued walking again, and then at some point he kicked me again. I just ignored him.

Q. Uh-huh.

A. And then eventually he left the pool. He walked passed me and he turned around, and he came back and told me -- can I say this? Can I quote what he said? I still remember.

MS. KIM: You can quote it.

THE WITNESS: Okay, thank you. He said, "you are really one son of a bitch." And then I looked up at him. I said, "No, I'm not.

Your mom is one son of a bitch who had a child like you.” And then I continued walking in the water. Next thing I know he dived into the water to where I’m at. And like I said earlier, I did not expect anything. And walking, I mean doing aquatics is a routine for me.

Q. Right.

A. So the next thing I know I’m knocked out. I believe I passed out for a good two, three seconds.

...

Q. Okay. Do you know what caused him to jump back in the pool? Did you say something to him?

A. Did I say something to him? I respond to his comment.

Q. Okay. What was his comment to you?

A. He said -- he said to me, "You are one son of a bitch."

Q. And then what was your response to him?

A. I said, "No, I’m not. Your mom is one son of a bitch having a child like you." Who having you, something in that nature.

Q. Okay. And then he didn’t say anything. He just jumped in the pool?

A. I believe so.

Q. Okay. Did you -- when you said something about his mother, did you expect him to jump in the pool?

A. No.

Q. Did you expect to get any kind of reaction out

of him when you said that?

A. No.

(Pl. depo, pp.39:14-25, 40:1-25, 41:1-16, 83:9-25, 84:1-4.)

Here, according to Plaintiff's own testimony, he insulted Hernandez's mother and then was assaulted. While Plaintiff does not allege what 24 Hour might have done to prevent the assault by Hernandez, Plaintiff testifies that Hernandez's assault was unexpected. The Sixth District has stated that "the predicate of any duty to prevent criminal conduct is its foreseeability. Property owners have no duty to prevent unexpected and random crimes." (*Nicole M. v. Sears, Roebuck & Co.* (1999) 76 Cal.App.4th 1238, 1247; see also *Alvarez v. Jacmar Pacific Pizza Corp.* (2002) 100 Cal.App.4th 1190, 1209 (stating same).) Even if Plaintiff had not admitted that the assault was unexpected, however, Plaintiff's testimony also demonstrates that there is no closeness of connection between 24 Hour's conduct and the injury suffered from the assault, there is no moral blame attached to 24 Hour's conduct in failing to prevent the assault, the policy of preventing future harm does not weigh in favor of finding business proprietor liable for the assault of a patron who instigated or provoked the assault by insulting the other party's mother, and there would be a significant burden on 24 Hour and other business proprietors to impose a duty to prevent assaults by preventing its patrons from making comments or responding to comments from one another, thereby demonstrating that 24 Hour did not owe Plaintiff a duty to protect Plaintiff from the assault. (See *Nicole M.*, *supra*, 76 Cal.App.4th at pp.1244-1245 (discussing *Rowland* factors in determining existence of duty).) Thus, 24 Hour also meets its initial burden to establish that the causes of action for negligence and premises liability lack merit because it did not owe Plaintiff a duty to protect him from the unforeseeable assault by Hernandez. (See evidence cited by 24 Hour's separate statement of undisputed material facts, nos. ("UMFs") 1-13.)

Plaintiff's objections numbers 8-16 are also OVERRULED.

Accordingly, the burden shifts to Plaintiff to demonstrate the existence of a triable issue of material fact. (See Code Civ. Proc. § 437c, subd. (p)(2) (stating that “[o]nce the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto”).)

In opposition, Plaintiff fails to demonstrate the existence of a triable issue of material fact.

In opposition, Plaintiff argues that: 24 Hour fails to meet its initial burden; there is a triable issue of material fact as to whether the release is enforceable or void; a release does not absolve a party from gross negligence and there is a triable issue of material fact as to whether the conduct at issue constitutes gross negligence; and, there is a triable issue of material fact as to whether 24 Hour had notice of the assault by Hernandez.

Plaintiff’s arguments regarding 24 Hour’s initial burden

Plaintiff first argues that 24 Hour fails to meet its initial burden because Grappone’s declaration lacks credibility. (See Pl.’s opposition to Def.’s motion for summary judgment (“Opposition”), pp.6:25-28, 7:1-18.) However, on summary judgment, “the judge neither weighs evidence nor assesses credibility.” (*Schmidt v. Super. Ct.* (2020) 44 Cal.App.5th 570, 583.) Moreover, Plaintiff’s arguments with regards to Grappone do not themselves demonstrate the existence of a triable issue of material fact. Plaintiff lastly asserts that 24 Hour did not present any evidence that it did not have notice that defendant “Hernandez had a dangerous propensity prior to the incident” (Opposition, p.7:21-22); however, as Plaintiff states, “[t]he pleadings determine what issues are material in a summary judgment motion” (Opposition, p.5:26; see also *Security Pacific National Bank v. Adamo* (1983) 142 Cal.App.3d 492, 496 (stating that “[o]n a motion for summary judgment the issues are defined by the pleadings”); see also *Physicians*

Committee for Responsible Medicine v. McDonald's Corp. (2010) 187 Cal.App.4th 554, 568 (stating that “[t]he pleadings define the issues to be considered on a motion for summary judgment... and the issues framed by the pleadings are the only issues a motion for summary judgment must address”); see also *Powell v. Standard Brands Paint Co.* (1985) 166 Cal.App.3d 357, 365-366 (stating that “[o]n motion for summary judgment the pleadings define the issues; thus ‘[in] the absence of some request for amendment there is no occasion to inquire about possible issues not raised by the pleadings’... [t]he purpose of a summary judgment proceeding is to permit a party to show that material factual claims arising from the pleadings need not be tried because they are not in dispute”); see also *Ignat v. Yum! Brands, Inc.* (2013) 214 Cal.App.4th 808, 820 (stating that “[i]n a motion for summary judgment, the complaint limits the issues... [a] plaintiff opposing such a motion cannot defeat it by proffering new, unpleaded theories or issues”); see also *Henry v. Clifford* (1995) 32 Cal.App.4th 315, 321 (stating that “[i]n a summary judgment proceeding, the pleadings define the issues”); see also *Booth v. Santa Barbara Biplane Tours, LLC* (2008) 158 Cal.App.4th 1173, 1177 (stating that “[o]n a motion for summary judgment, the pleadings define the issues”); see also *Addy v. Bliss & Glennon* (1996) 44 Cal.App.4th 205, 215 (Sixth District stating that “[t]he pleadings define the issues to which a summary judgment motion must be directed”); see also *Hagen v. Hickenbottom* (1995) 41 Cal.App.4th 168, 172 (stating that “[t]he pleadings define the issues to which a summary judgment motion may, or need, be directed”), and the complaint neither alleges that Hernandez had a dangerous propensity prior to the incident, nor that 24 Hour was negligent in failing to prevent the assault despite being on notice of such propensity.

Plaintiff’s arguments that there is a triable issue of material fact as to whether the release is enforceable

Plaintiff also argues that the release is unenforceable because it was not properly authenticated, lacks foundation, is in a small font size, and there is no evidence that Plaintiff received a copy of it. However, as previously stated above, Plaintiff’s objections to the release

were overruled. As to font size, Plaintiff does not cite to any case authority suggesting that a particular font size is required or would otherwise render a release unenforceable. (See *City of Palo Alto v. Public Employment Relations Bd.* (2016) 5 Cal.App.5th 1271, 1302 (Sixth District stating that “[w]hen points are perfunctorily raised without adequate analysis and authority, we may treat them as abandoned or forfeited”); see also *Needelman v. DeWolf Realty Co., Inc.* (2015) 239 Cal.App.4th 750, 762 (stating that “[i]ssues not supported by... citation to authority are forfeited”); see also *People ex rel. Reisig v. Acuna* (2010) 182 Cal.App.4th 866, 873 (stating that “[a] point not... supported by citation to authority is forfeited”); see also *Jones v. Super. Ct. (People)* (1994) 26 Cal.App.4th 92, 99 (stating that “[i]ssues do not have a life of their own: if they are not raised or supported by argument or citation to authority, we consider the issues waived”); see also *WFG National Title Ins. Co. v. Wells Fargo Bank, N.A.* (2020) 51 Cal.App.5th 881, 894 (stating that “we may disregard conclusory arguments that are not supported by pertinent legal authority”); see also *City of Santa Maria v. Adam* (2012) 211 Cal.App.4th 266, 287 (stating that “we may disregard conclusory arguments that are not supported by pertinent legal authority”).) As to Plaintiff’s arguments that there is no evidence that Plaintiff received a copy of the release, the release of liability signed by Plaintiff states that Plaintiff “agree[s] to all the terms on the front and back pages of this agreement and acknowledge[s] that he] ha[s] received a copy of it and the membership policies.” Plaintiff fails to demonstrate that there there is a triable issue of material fact as to whether the release is enforceable or void.

Plaintiff’s arguments that there is a triable issue of material fact as to whether the conduct at issue constitutes gross negligence

Plaintiff next argues that “[a] release cannot absolve a party from liability for gross negligence,” and “a jury could reasonably find that it is an extreme departure from what a reasonably careful person would do in the same situation for a health club such as 24 Hour Fitness to fail to monitor a pool lane designated specifically for disabled members.” Plaintiff is correct that in *City of Santa Barbara v. Super. Ct. (Janeway)* (2007) 41 Cal.4th 747, the court

stated that “the agreement, to the extent it purports to release liability for future gross negligence, violates public policy and is unenforceable.” (*Id.* at p.751.) However, the *City of Santa Barbara* court also stated that “under a gross negligence standard, meritless suits will typically be disposed of by summary judgment... [and i]n this respect, we emphasize the importance of maintaining a distinction between ordinary and gross negligence, and of granting summary judgment on the basis of that distinction in appropriate circumstances.” (*Id.* at p.767.)

As the *City of Santa Barbara* court stated, “‘Gross negligence’ long has been defined in California and other jurisdictions as either a ‘want of even scant care’ or ‘an extreme departure from the ordinary standard of conduct.’” (*Id.* at pp.753-754 (as contrasted with “‘[o]rdinary negligence’—an unintentional tort—[which] consists of a failure to exercise the degree of care in a given situation that a reasonable person under similar circumstances would employ to protect others from harm”), 776 (stating that “the distinction between ‘ordinary and gross negligence’ reflects ‘a rule of policy’ that harsher legal consequences should flow when negligence is aggravated instead of merely ordinary”); see also *Anderson v. Fitness Internat., LLC* (2016) 4 Cal.App.5th 867, 881 (stating that “‘[m]ere nonfeasance, such as the failure to discover a dangerous condition or to perform a duty,’ amounts to ordinary negligence... to support a theory of ‘[g]ross negligence,’ a plaintiff must allege facts showing ‘either a ‘want of even scant care’ or ‘an *extreme* departure from the ordinary standard of conduct’”).)

Here, the complaint does not allege that 24 Hour was grossly negligent, lacked a want of even scant care, or that its conduct was an extreme departure from the ordinary standard of conduct. Moreover, Plaintiff does not provide any evidence to add to or contradict his own testimony of the incident in which he admitted that the assault was unexpected or that he insulted the attacker’s mother and him just prior to the assault; rather, Plaintiff provides the same excerpts of his deposition testimony which demonstrate not only an absence of an extreme departure from the ordinary standard of conduct but also an absence of a failure to exercise the degree of care in this situation that a reasonable person under similar circumstances would employ to protect

others from harm. As such, Plaintiff fails to demonstrate the existence of a triable issue of material fact as to whether the conduct at issue constitutes gross negligence and is thus outside the release of liability.

Plaintiff's arguments that there is a triable issue of material fact as to whether 24 Hour had notice of the assault by Hernandez

Lastly, Plaintiff argues that there is a triable issue of material fact as to whether 24 Hour had notice of the assault by Hernandez. However, again, the evidence submitted by both parties is that Plaintiff admitted that the assault was unexpected. There can be no triable issue of notice if the criminal act was unexpected. (See *Nicole M. v. Sears, Roebuck & Co.* (1999) 76 Cal.App.4th 1238, 1247 (stating that “[p]roperty owners have no duty to prevent unexpected and random crimes”); see also *Alvarez v. Jacmar Pacific Pizza Corp.* (2002) 100 Cal.App.4th 1190, 1209 (stating same).) Plaintiff fails to demonstrate the existence of a triable issue of material fact as to notice of the assault by Hernandez.

As defendant 24 Hour has met its burden to show that the complaint lacks merit against it and, in opposition, Plaintiff fails to demonstrate the existence of a triable issue of material fact, 24 Hour's motion for summary judgment is GRANTED.

Defendant 24 Hour shall prepare and submit a proposed final order and judgment consistent with this tentative ruling.

Calendar Line 7

Case Name: *Zhan Ping Ye et al. v. Summerton Condominium Association et al.*
Case No.: 26CV490111